



## POLICE DEPARTMENT

Jonathan Darche  
Executive Director  
New York City Civilian Complaint Review Board  
100 Church Street, 10<sup>th</sup> floor  
New York, NY 10007

April 2, 2020

### **POLICE COMMISSIONER'S PENALTY DEPARTURE**

Re: CCRB Case No. 201810384 regarding Sergeant Gesner Charles, Tax No. [REDACTED] (DADS No. 2019-21251)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter.

In this case the complainant approached the precinct to obtain a motor vehicle accident report and directed profanity toward a police officer and an auxiliary police officer who were both standing outside. Once inside the precinct the complainant continued to use profanity and was escorted outside by a police officer. At this time the respondent came out of the precinct and advised the complainant he could be summonsed or arrested for Disorderly Conduct because of his behavior. Thereafter, a police officer issued a summons for Disorderly Conduct to the complainant.

Although the complainant's conduct was clearly inappropriate it did not meet all the elements of the Disorderly Conduct statute since there did not appear to be public inconvenience, annoyance or alarm or a risk of public inconvenience, annoyance or alarm.

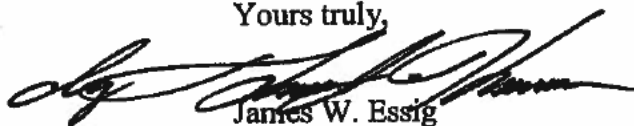
Therefore, the Police Commissioner directs that the respondent receive training in this matter.

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Website: <http://nyc.gov/nypd>

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,



James W. Essig  
Assistant Chief  
Commanding Officer  
Police Commissioner's Office

